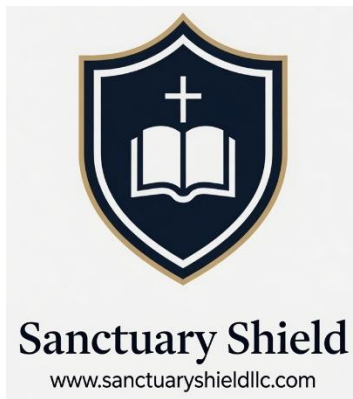




FERPA Alignment Checklist

This standalone checklist is adapted from the *Safety and Security Concerns of a Christian School* subchapter in **Securing the Sanctuary**. Even though most private Christian K-12 schools are not legally required to comply with the Family Educational Rights and Privacy Act (FERPA) because they typically do not receive direct federal funding under U.S. Department of Education programs, aligning with its core principles is a best practice that strengthens testimony, parental trust, insurance posture, and accreditation standing. FERPA (20 U.S.C. § 1232g; 34 C.F.R. Part 99) establishes the national standard for protecting the privacy of student education records, including

Personal Identifiable Information (PII). Voluntary alignment protects student data, reduces cyber and privacy risks, strengthens parental trust, and upholds the school's Christian testimony.

How to use this checklist: Review annually with your safety and security Team. Check items as implemented. Customize for your school's size and integrate into your safety and security Plan, staff handbook, and training calendar. Consult legal counsel for Pennsylvania-specific requirements and church-school data-sharing boundaries.

Policy & Governance

- ☐ Adopt a written FERPA-aligned privacy policy defining education records, PII, consent requirements, directory information, and disclosure exceptions.
- ☐ Designate a privacy lead or officer (may overlap with safety and security coordinator or school administrator).
- ☐ Provide annual notice to parents/eligible students of their rights (inspection, amendment, consent/opt-out for directory information).
- ☐ Review/update all vendor and cloud-service contracts (SIS, LMS, parent portals) to include strong data-protection, breach-notification, and confidentiality clauses.
- ☐ Document clear criteria for "legitimate educational interest" / need-to-know access (especially important for safety and security members).

Data Handling & Access Controls

- ☐ Enforce role-based, need-to-know access to student records and systems; safety and security personnel access PII only with documented safety or educational justification.
- ☐ Apply a "two-deep" or dual-authorization principle for release or access to highly sensitive records (parallel to the two-adult rule for child protection).
- ☐ Maintain audit logs for all access to PII-containing systems.
- ☐ Establish and follow data retention schedules and secure destruction procedures (both paper and electronic).
- ☐ Flag or segregate especially sensitive categories (IEP/504 plans, counseling notes, discipline, health information).

Security & Technology

- ☐ Encrypt sensitive student data in transit and at rest wherever feasible.
- ☐ Require multi-factor authentication (MFA) on all parent portals, SIS, LMS, and administrative systems.
- ☐ Conduct regular vulnerability scans, penetration testing, and phishing simulations focused on education-data systems.

- ☐ Include ransomware and data-breach scenarios in annual security/incident-response drills.
- ☐ Maintain cyber insurance that specifically covers educational records and breach response costs.

Training & Awareness

- ☐ Deliver annual FERPA/privacy and secure data-handling training to all staff and safety and security members.
- ☐ Include realistic scenarios (custody disputes at dismissal, media inquiries, health/safety emergencies, cyber incidents).
- ☐ Incorporate privacy modules into new-hire orientation and volunteer onboarding.

Incident Response & Breaches

- ☐ Add a data-breach addendum to existing procedures (Active Shooter, Medical Emergency, Custody Dispute, Media, etc.) that addresses PA BPINA timelines (“without unreasonable delay”; reference 7-business-day standard) and FERPA notification limits on PII.
- ☐ Pre-prepare FERPA-compliant notification templates that minimize unnecessary disclosure of student information.
- ☐ Establish a rapid legal/admin review process before any release of student data to law enforcement, parents (in disputed custody cases), or external parties.
- ☐ Ensure MOUs with local law enforcement include clear information-sharing protocols that respect student privacy.

Parent Communication & Rights

- ☐ Provide a clear, secure process for parents to inspect and request amendment of records.
- ☐ Maintain an easy opt-out mechanism for directory information.
- ☐ Communicate promptly and transparently with affected families after any privacy or security incident involving student data.
- ☐ Develop specific protocols for custody disputes that align with court orders and FERPA principles regarding record access.

Integration with safety and security Ministry

- ☐ Reference this checklist in the overall safety and security Plan and elevate cyber risks involving student PII in the risk assessment matrix.
- ☐ Review and update the checklist annually alongside ACT 235 recertification, drills, and procedure revisions.
- ☐ Consult legal counsel on Pennsylvania-specific requirements and boundaries for data sharing between the sponsoring church and school.

Note: This is a voluntary best-practice tool. While most private schools are not directly subject to FERPA, alignment demonstrates faithful stewardship of entrusted information, protects the dignity of students and families, and supports a robust safety culture. Always verify current legal requirements with qualified counsel.